JUSTICE KAVANAUGH delivered the opinion of the Court.

Under authority granted by the Federal Insecticide, Fungicide, and Rodenticide Act, the Environmental Protection

licitor General, and *Zachary B. Pohlman*, Deputy Solicitor General, by *Brenna Bird*, Attorney General of Iowa, and *Eric Wessan*, Solicitor General, by *Catherine L. Hanaway*, Attorney General of Missouri, and *Louis J. Capozzi III*, Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Chris Carr* of Georgia, *Kris Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Austin Knudsen* of Montana, *Drew Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *David Sunday* of Pennsylvania, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, and *Derek Brown* of Utah; for the Agricultural Retailers Association et al. by *John L. Rockenbach* and *Richard D. Gupton*; for the American Free Enterprise Chamber of Commerce by *Michael Buschbacher* and *James R. Conde*; for the American Tort Reform Association et al. by *Cary Silverman*; for the Atlantic Legal Foundation by *Lawrence S. Ebner*; for the Chamber of Commerce of the United States of America et al. by *William M. Jay*, *Andrew R. Varcoe*, *Audrey Dos Santos*, *James M. Beck*, *Aleacia Chinkhota*, *Cory L. Andrews*, *James C. Stansel*, and *Melissa B. Kimmel*; for CropLife America by *Shannen W. Coffin* and *Conor Tucker*; for Farm Bureau Organizations of California et al. by *Michael B. Kimberly*, *Kari E. Fisher*, *Chad A. Endsley*, and *Leah F. Curtis*; for National Agricultural Associations by *David Y. Chung*, *Ellen Steen*, and *Travis Cushman*; for the Retail Litigation Center, Inc., by *William P. Barnette*, *Monica Welt*, and *I. Cason Hewgley IV*; and for Missouri State Sen. Jason Bean et al. by *Edward D. Greim* and *Katherine E. Mitra*.

Page Proof Pending Publication

Briefs of *amici curiae* urging affirmance were filed for the State of New Mexico et al. by *Raúl Torrez*, Attorney General of New Mexico, *Aletheia V. P. Allen*, Solicitor General, and *Alexander W. Tucker*, Assistant Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Kris Mayes* of Arizona, *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *Kathleen Jennings* of Delaware, *Brian Schwalb* of the District of Columbia, *Kwame Raoul* of Illinois, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Jennifer Davenport* of New Jersey, *Letitia James* of New York, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Eric J. Wilson* of Wisconsin; for the State of Texas et al. by *Ken Paxton*, Attorney General of Texas, *William R. Peterson*, Solicitor General, *Brent Webster*, First Assistant Attorney General, *William F. Cole*,

Agency regulates pesticides, including pesticide labels. As relevant here, EPA regulates Roundup, a glyphosate-based pesticide manufactured by Monsanto. Because EPA has repeatedly concluded that glyphosate is not likely to cause cancer, the agency has not required a cancer warning on Roundup's label. Importantly, EPA's regulations require a pesticide manufacturer such as Monsanto to use the EPA-approved pesticide label—here, the Roundup label without a cancer warning—unless and until EPA approves or requires a different label. Moreover, to ensure "[u]niformity" in labeling, FIFRA's preemption clause prohibits States from imposing any pesticide labeling requirements that are "in addition to or different from" the federal labeling requirements "under" FIFRA. 7 U. S. C. § 136v(b).

John Durnell brought a failure-to-warn tort suit in Missouri state court against Monsanto for not including a cancer warning on Roundup's label. Durnell alleged that Monsanto

Page Proof Pending Publication

Principal Deputy Solicitor General, and *Matthew M. Hilderbrand*, Assistant Solicitor General, by *James Uthmeier*, Attorney General of Florida, and *Dave Yost*, Attorney General of Ohio; for the American Association for Justice et al. by *Matthew W. H. Wessler*, *Gregory A. Beck*, *Bruce Plaxen*, *Jeffrey R. White*, and *Leah M. Nicholls*; for the Center for Food Safety et al. by *George A. Kimbrell*; for Children's Health Defense by *Mary S. Holland*; for the Heartland Health Research Alliance (HHRA) by *Jesse A. Buss*; for Farmer and Farmworker Groups by *Nathan Leys*; for Farmworker Justice et al. by *Patti Goldman* and *Gregory C. Loarie*; for Former EPA Officials et al. by *Dana Kaersvang*, *Ruthanne M. Deutsch*, and *Hyland Hunt*; for the Local Government Legal Center et al. by *Robert S. Peck*; for Public Citizen by *Adina H. Rosenbaum*, *Allison M. Zieve*, and *Scott L. Nelson*; for Roundup and Paraquat MDL Leadership by *David C. Frederick* and *Derek C. Reinbold*; for Stand Up for Health Freedom by *James Bopp, Jr.*; for the Veterans of Foreign Wars of the United States by *Gerson H. Smoger* and *Jason E. Johns*; for Sen. Cory Booker by *Glenn A. Danas* and *Ryan J. Clarkson*; for Philip Landrigan et al. by *David Wool* and *Alani Golanski*; and for Naomi Oreskes et al. by *Scott P. Lewis*.

Jeffrey A. Lamken, *Eric R. Nitz*, and *John R. W. Cracken* filed a brief of *amici curiae* for 36 State Legislators.

failed to warn him of Roundup's cancer risks and that he developed non-Hodgkin's lymphoma as a result.

But Durnell's state tort claim would require Monsanto to add a cancer warning to Roundup's label even though federal law requires Monsanto to use the EPA-approved label without a cancer warning. Because Durnell's state tort claim would impose a pesticide labeling requirement "in addition to or different from" the label required by EPA, FIFRA expressly preempts Durnell's claim.

I

A

In 1947, Congress passed and President Truman signed the Federal Insecticide, Fungicide, and Rodenticide Act. Ch. 125, 61 Stat. 163, as amended, 7 U. S. C. § 136 *et seq.* The 1947 Act required that pesticides be registered with the Secretary of Agriculture. But the Act assigned the Secretary a relatively passive role; the Secretary could not refuse to register a pesticide. 61 Stat. 167–168.

Page Proof Pending Publication

In 1972, Congress passed and President Nixon signed the Federal Environmental Pesticide Control Act. 86 Stat. 973. That Act "transformed" FIFRA "into a comprehensive regulatory statute" and placed the newly created Environmental Protection Agency in charge of pesticide registration and labeling. *Bates* v. *Dow Agrosciences LLC*, 544 U. S. 431, 437 (2005) (quotation marks omitted). In doing so, Congress "significantly strengthened FIFRA's registration and labeling standards" and granted "increased enforcement authority" to EPA. *Wisconsin Public Intervenor* v. *Mortier*, 501 U. S. 597, 601 (1991).

Under that revamped regulatory regime, which still governs today, pesticides must be registered with EPA. §§ 136a(a), 136j(a)(1)(A). Before registering a pesticide, EPA undertakes an extensive review of the pesticide and its proposed labeling. Pesticide manufacturers must submit information about the pesticides' formulas, potential adverse

effects, and testing. §§ 136a(c)(1)(A)–(F), (2); 40 CFR § 152.50(f)(3) (2025). Manufacturers must also propose a label for their products, which must include any necessary precautionary statements. 7 U. S. C. § 136a(c)(1)(C); 40 CFR § 156.10(a)(1)(vii).

EPA must then review all of that information and data. To register a pesticide, EPA must conclude that the pesticide "will not generally cause unreasonable adverse effects" on human health and the environment, and that its labeling "compl[ies] with the requirements" of FIFRA. 7 U. S. C. §§ 136a(c)(5)(B), (D).

As to the label, FIFRA requires that a pesticide not be "misbranded." § 136j(a)(1)(E). A pesticide is misbranded if its label contains "any statement" that is "false or misleading" or if the label does not contain "a warning or caution statement which may be necessary and . . . adequate to protect health and the environment." §§ 136(q)(1)(A), (G). FIFRA defines "protect health and the environment" to mean "protection against any unreasonable adverse effects on the environment," including "any unreasonable risk to man or the environment, taking into account the economic, social, and environmental costs and benefits of the use of any pesticide." §§ 136(x), (bb).

Page Proof Pending Publication

FIFRA authorizes EPA to issue regulations to "carry out the provisions of" FIFRA. § 136w(a)(1). Under that statutory authority, EPA has promulgated extensive regulations fleshing out what it means for a pesticide to be misbranded and dictating what must appear on a pesticide's label. See, *e. g.*, 40 CFR § 156.10 (Labeling requirements). As relevant here, those regulations specify the required content and placement of precautionary statements such as cancer warnings. See §§ 156.60–156.70 (Human Hazard and Precautionary Statements).

Putting all of that together, before registering a pesticide, EPA must evaluate a pesticide and its proposed label—and must determine that the proposed label includes all warnings

necessary and adequate to protect human health and the environment, and is not false or misleading. EPA's registration of the pesticide and approval of the pesticide's label embodies the agency's considered judgment that a pesticide is not misbranded—that is, that the label is not false or misleading and does not omit a necessary warning. See 7 U. S. C. §§ 136a(c)(5)(B), 136(q)(1)(A), (G).

Importantly, after EPA has registered the pesticide and approved the label, the manufacturer is required to use that label. Subject to narrow exceptions not relevant here, the manufacturer may not change the label unless EPA subsequently approves a manufacturer's proposed change or EPA itself requires a change to the label. See 40 CFR §§ 152.44(a), 156.70(c). If a manufacturer does not use the EPA-approved label, it may be subject to civil and criminal penalties. See 7 U. S. C. §§ 136j(a)(1)(E) (misbranding violation), 136*l* (civil and criminal penalties). In particular, EPA may bring enforcement actions against a manufacturer for violating FIFRA's misbranding provisions—which could happen, for example, if a manufacturer sells its pesticide with a different label than the one EPA approved. If EPA determines that a given warning is necessary for a pesticide's label and the manufacturer then proceeds to sell the pesticide *without* that warning, the manufacturer might face liability for misbranding.[1]

Page Proof Pending Publication

EPA's comprehensive regulatory role does not end with the pesticide's initial registration and label approval. If the manufacturer wants to modify the label, it typically must go through an amended registration process. FIFRA provides that if "the labeling . . . for a pesticide is changed, the regis-

---

[1] Registration carries other consequences, too. FIFRA prohibits selling a pesticide "if any claims made for it . . . substantially differ" from any claims made in "the statement required in connection with its registration." 7 U. S. C. § 136j(a)(1)(B). And FIFRA prohibits selling a pesticide if its "composition" differs from the composition described at registration. § 136j(a)(1)(C).

tration shall be amended to reflect such change if the [EPA] Administrator determines that the change will not violate" FIFRA. § 136a(f)(1). EPA regulations further provide that "any modification" to the "labeling" of a "registered product must be submitted with an application for amended registration." 40 CFR § 152.44(a); see § 152.50 (listing required contents of registration and amended registration applications).

EPA also possesses a slew of tools to monitor the pesticide market and scientific developments, and thereby ensure that pesticide labels contain appropriate warnings in light of changed circumstances or new information. After the initial registration and approval of a label, manufacturers must continue to inform EPA of "additional factual information regarding unreasonable adverse effects" of their pesticides. 7 U. S. C. § 136d(a)(2). That obligation is enforced through civil and criminal penalties. See § 136*l*. EPA may also "determin[e] that additional data are required to maintain in effect an existing registration of a pesticide," and therefore request more information from the manufacturers. §§ 136a(c)(2)(B)(i)–(ii). In that circumstance, manufacturers must take appropriate steps to disclose that new evidence or face suspension of their pesticides' registration. § 136a(c)(2)(B)(iv). In light of new information or analysis by EPA, the agency at any time may require "additional labeling language" to "mitigate" "identified hazard(s)." 40 CFR § 152.170(e)(1). EPA also must formally review a pesticide's registration every 15 years. 7 U. S. C. §§ 136a(g)(1)(A)(iii)–(iv).

In addition, EPA may cancel a pesticide's registration, and thereby prohibit its continued sale, if "it appears to the Administrator that a pesticide or its labeling . . . does not comply with" FIFRA. § 136d(b). EPA may also immediately suspend a pesticide's registration if "necessary to prevent an imminent hazard" while a cancellation is pending. § 136d(c)(1).

Page Proof Pending Publication

On top of EPA's own authority to monitor a pesticide's continued safety and order appropriate changes such as a new label, any person can petition EPA to modify, suspend, or cancel a pesticide's registration based on, for example, new evidence about the dangers of the pesticide. 40 CFR § 154.10. If EPA refuses to do so, a party may seek judicial review of EPA's decision. 7 U. S. C. §§ 136n(a), 136d(h).

Finally, and crucially for this case, FIFRA includes a preemption clause that further underscores EPA's comprehensive and exclusive authority in registering pesticides and approving labels. In a provision entitled "Uniformity"—a title that was added in a public law enacted by Congress in 1988, not by the codifiers—FIFRA prohibits States from imposing "any requirements for labeling or packaging in addition to or different from those required under" FIFRA. § 136v(b); Federal Insecticide, Fungicide, and Rodenticide Act Amendments of 1988, 102 Stat. 2654, 2687.[2]

Page Proof Pending Publication

B

Monsanto Company is a subsidiary of Bayer AG. Monsanto manufactures and distributes Roundup, a glyphosate-based herbicide designed to control weeds.[3]

In 1974, EPA first registered glyphosate-based pesticides and approved Roundup's label without a cancer warning. In 1991 and for the more than three decades since, EPA has repeatedly re-evaluated glyphosate and has repeatedly concluded that glyphosate is not likely to cause cancer. For example, in 1991, EPA classified glyphosate as unlikely to cause cancer in humans. See EPA, Office of Pesticides and Toxic Substances, Second Peer Review of Glyphosate 1 (Oct. 30,

---

[2] States remain free to "regulate the sale or use of any federally registered pesticide." § 136v(a). For example, a State could outright ban a pesticide within its borders.

[3] Pesticide is an umbrella term that covers any substance "intended for preventing, destroying, repelling, or mitigating any pest." § 136(u). A herbicide is a kind of pesticide that specifically targets weeds.

1991). In 1993, EPA reiterated that conclusion and re-registered glyphosate products without a cancer warning. See EPA, Office of Prevention, Pesticides and Toxic Substances, Reregistration Eligibility Decision: Glyphosate 13–14 (Sept. 1993).

In 2017 and 2019, after the International Agency for Research on Cancer classified glyphosate as a probable carcinogen, EPA re-examined the issue but still adhered to its long-standing position on glyphosate. See EPA, Office of Pesticide Programs, Revised Glyphosate Issue Paper: Evaluation of Carcinogenic Potential 12–13, 144 (Dec. 12, 2017); EPA, Glyphosate: Proposed Interim Registration Review Decision 7–8 (Apr. 2019). In 2020, in an interim registration review decision, EPA reiterated that same position. See EPA, Glyphosate: Interim Registration Review Decision Case No. 0178, p. 10 (Jan. 2020); *Natural Resources Defense Council* v. *EPA*, 38 F. 4th 34, 51 (CA9 2022) (vacating EPA's 2020 decision regarding glyphosate).

Page Proof Pending Publication

EPA's assessment of glyphosate is shared by many other regulatory bodies around the world that have likewise concluded that glyphosate is not carcinogenic, including regulators in Canada, Australia, Japan, and the European Union.

All told, in accordance with EPA's view that glyphosate is not likely to cause cancer in humans, EPA has not required glyphosate-based pesticides like Roundup to include a cancer warning on their labels.[4] Therefore, as a matter of federal law, Monsanto legally must use a label without a cancer warning unless and until EPA approves or requires a change.

C

In 2019, John Durnell sued Monsanto in Missouri state court. Durnell alleged that he had used Monsanto's Roundup products for about 20 years and that they had caused his non-Hodgkin's lymphoma, a form of cancer. As

[4] Monsanto has phased out residential Roundup products that contain glyphosate.

relevant here, Durnell brought a failure-to-warn tort claim, claiming that Monsanto should have included a cancer warning on Roundup's label. A jury agreed and awarded Durnell more than $1 million on the failure-to-warn theory.

In Missouri trial court, Monsanto moved on preemption grounds for judgment notwithstanding the verdict. Monsanto argued that FIFRA expressly preempted Durnell's failure-to-warn claim because FIFRA prohibits States from imposing labeling requirements that are "in addition to or different from" those imposed under FIFRA. 7 U. S. C. § 136v(b). Monsanto explained that EPA approved its labels without a cancer warning at registration and that it was therefore able to (indeed, required to) keep using that label.

The Missouri trial court rejected Monsanto's preemption argument. The Missouri Court of Appeals affirmed. 707 S. W. 3d 828 (2025). The Court of Appeals reasoned that Missouri failure-to-warn claims are "fully consistent with" FIFRA's misbranding provisions because "both require a pesticide manufacturer to adequately warn users of the potential dangers of using its product." *Id.*, at 832–833.

Page Proof Pending Publication

The federal Courts of Appeals and state courts have divided over whether FIFRA preempts a state tort claim based on Roundup's lack of a cancer warning. Compare *Schaffner* v. *Monsanto Corp.*, 113 F. 4th 364 (CA3 2024), with *Carson* v. *Monsanto Co.*, 92 F. 4th 980 (CA11 2024); *Hardeman* v. *Monsanto Co.*, 997 F. 3d 941 (CA9 2021); *Johnson* v. *Monsanto Co.*, 333 Ore. App. 678, 554 P. 3d 290 (2024); *Pilliod* v. *Monsanto Co.*, 67 Cal. App. 5th 591, 282 Cal. Rptr. 3d 679 (2021).

To resolve that split, this Court granted certiorari. 607 U. S. 1148 (2026).

II

FIFRA's preemption clause is entitled "Uniformity" and provides that a "State shall not impose or continue in effect any requirements for labeling or packaging in addition to or different from those required under this subchapter." 7

U. S. C. § 136v(b). FIFRA therefore preempts a state-law labeling requirement that differs from the federal labeling requirements imposed under FIFRA. "Uniformity" in labeling—the textually stated objective of FIFRA's preemption clause—would otherwise be impossible to achieve. *Ibid.*

A

To start, as this Court's precedents make clear and as the parties agree, state tort duties constitute state labeling requirements. See *Bates* v. *Dow Agrosciences LLC*, 544 U. S. 431, 443–444 (2005); *Riegel* v. *Medtronic, Inc.*, 552 U. S. 312, 323–324 (2008); *Cipollone* v. *Liggett Group, Inc.*, 505 U. S. 504, 523–524 (1992) (plurality opinion); *id.*, at 548–549 (Scalia, J., concurring in judgment in part and dissenting in part). Failure-to-warn claims, like Durnell's claim here, "are premised on common-law rules that qualify" as labeling requirements because those "rules set a standard for a product's labeling." *Bates*, 544 U. S., at 446.

Page Proof Pending Publication

That makes good sense. After all, the heart of Durnell's failure-to-warn claim under Missouri tort law is that Monsanto should have included a cancer warning on its Roundup labels.

The question, then, is whether the Missouri failure-to-warn claim—which would require a cancer warning on the Roundup label—would impose a labeling requirement that is "in addition to or different from" federal labeling requirements imposed "under" FIFRA. The answer is yes.

As described at length above, to register a pesticide, EPA must approve the pesticide's label. And to approve the label, EPA must determine that the label contains all warnings "necessary and . . . adequate to protect health and the environment" and that a label does not include any "false or misleading" statements. §§ 136a(c)(5)(B), 136(q)(1)(A), (G).

After EPA approves a pesticide's label at registration, manufacturers are legally *required* to use that label—unless

and until EPA approves or requires a label change and amends the pesticide's registration. See § 136a(f)(1); 40 CFR §§ 152.44(a), 156.70(c) (2025). If a manufacturer does not use the EPA-approved label, it may be subject to civil and criminal penalties. See 7 U. S. C. §§ 136*l*, 136j(a)(1)(E).

It is true that EPA may subsequently change course in light of new information or new analysis, and require an amended label and amended registration. As described above, FIFRA and EPA's regulations set forth an extensive process for doing so. But absent such an EPA-approved or EPA-required label change, the pesticide manufacturers may—and indeed legally must—use the pesticide label approved by EPA at registration.[5]

---

[5] Of course, a manufacturer may make "minor modifications" by notification to EPA and without EPA's approval. 40 CFR § 152.46(a)(1). But EPA's regulations specifically require EPA approval for precautionary "statements pertaining to the hazards of the product," which would include cancer warnings. § 156.70(c); see also Brief for United States as *Amicus Curiae* 32–33 ("that exception" for minor modifications "does not apply to precautionary statements like cancer warnings").

Preliminary Print

The dissent disputes that conclusion, maintaining that precautionary statements encompass only "acute hazards," not chronic risks—and thus do not require EPA approval for cancer warnings. *Post*, at 403, n. 4 (opinion of JACKSON, J.). The ordinary meaning of "hazards" and "precautionary statements," however, covers cancer warnings. Hazards to human health are hazards. As the U. S. Government has explained, "precautionary statements" pertain to the hazards of a pesticide and thus plainly encompass "cancer warning[s]." Brief for United States as *Amicus Curiae* 7 (quotation marks omitted); see Tr. Oral Arg. 55 ("[I]f you are doing something like a hazard warning, which I don't see any way of describing a cancer warning as anything other than that, you must get agency approval. That's what it says. That's 156.70"); see also *id.*, at 43 ("[Section] 156.70 is the clearest. It says, for hazards like cancer, you have to ask for EPA's approval"). That is why EPA requires robust evidence of a pesticide's potential carcinogenicity as a part of registration. See, *e. g.*, 40 CFR §§ 158.34, 158.130(d)(3), 158.500(d) (2025). And that is why, with respect to Roundup specifically, EPA has repeatedly evaluated glyphosate's potential carcinogenicity to ensure that the pesticide "will not gener-

In sum, federal law requires Monsanto to sell Roundup with the label that EPA approved at the initial registration and that EPA has subsequently re-approved on multiple occasions—that is, the label without a cancer warning. Durnell's state tort claim, by contrast, would require Monsanto to add a cancer warning to its labels. That Missouri-law requirement is "in addition to" and "different from" Monsanto's federal-law labeling obligations.

B

This Court's precedents reinforce that textual conclusion. In *Bates*, the Court explained that the relevant labeling "requirements" under FIFRA included FIFRA's misbranding provision and "any relevant EPA regulations that give content to FIFRA's misbranding standards." 544 U. S., at 453.

And the *Bates* Court gave a telling example of how FIFRA's preemption clause operates. If an EPA regulation required a "CAUTION" designation for a pesticide and if a state failure-to-warn claim targeted the pesticide's label for including the "CAUTION" designation instead of a "DANGER" warning, that failure-to-warn claim would be preempted. See *ibid.*

Page Proof Pending Publication

Here, just like an EPA regulation providing that a pesticide need not include a "DANGER" warning on its label, EPA's registration determination that Roundup's label need not include a cancer warning constitutes a federal labeling requirement that cannot be altered by state law, including state tort suits. That is because those registration determi-

---

ally cause unreasonable adverse effects" on human health and the environment. 7 U. S. C. §136a(c)(5)(D); see *supra*, at 380–381. Moreover, even if Monsanto could unilaterally add a cancer warning to its Roundup label as a "minor modification," EPA has not required such a warning. Therefore, a state-law requirement purporting to mandate a cancer warning is necessarily "in addition to" or "different from" the relevant federal requirements.

nations, just like EPA's regulations, "give content to FIFRA's misbranding standards." *Ibid.*

To be sure, in *Bates*, the state failure-to-warn claims at issue targeted a pesticide label's efficacy claims. See *id.*, at 435, 440. Those state tort claims were not preempted. *Bates* distinguished between efficacy claims on the one hand—which EPA did not review as a part of registration—and safety claims on the other hand, which EPA does thoroughly review at registration and are therefore preempted. See *id.*, at 440 ("EPA's approval of a pesticide label does not reflect any determination on the part of EPA that the pesticide will be efficacious") (quotation marks omitted).

This case of course concerns safety claims. And when it comes to safety claims, EPA's registration determinations do reflect EPA's considered judgment that a pesticide's label is not false or misleading and contains all necessary warnings. So safety claims that would impose labeling requirements "in addition to" or "different from" those required under FIFRA are preempted.

Page Proof Pending Publication

The Court's more recent decision in *Riegel* further confirms that Durnell's failure-to-warn claim is expressly preempted. In *Riegel*, the Court addressed the preemption clause in the Medical Device Amendments of 1976, which is nearly identical to FIFRA's preemption clause. 552 U. S., at 316; see 21 U. S. C. § 360k(a).[6] The Medical Device Amendments direct the Food and Drug Administration to approve medical devices for sale after analyzing their safety, just as EPA does for pesticides. 552 U. S., at 318. As part of the premarket approval process, FDA is required to re-

[6] The MDA's express preemption clause provides that "no State . . . may establish or continue in effect with respect to a device intended for human use *any requirement*—(1) *which is different from, or in addition to, any requirement applicable under this chapter to the device,* and (2) which relates to the safety or effectiveness of the device or to any other matter included in a requirement applicable to the device under this chapter." 21 U. S. C. § 360k(a) (emphasis added).

view the device's label and to determine that the label is neither false nor misleading, as EPA does for pesticide labels. *Ibid.* And after FDA approves a device, the manufacturer is required to use that label and is prohibited from making any changes to the device or label without additional FDA approval, as is the case with pesticide labels and EPA. *Id.*, at 319.

The *Riegel* Court concluded that FDA's premarket approval of devices imposed "'requirements' under" the Act's preemption clause, *id.*, at 322, and therefore that FDA's premarket approval of a medical device preempted state-law claims premised on additional or contrary safety requirements. *Id.*, at 323–325.

Riegel is dispositive here. If FDA's premarket approval of medical devices preempted additional state-law requirements, so too must EPA's registration of pesticides and approval of pesticide labels.

As *Riegel* indicates, allowing Durnell's state tort claim to overcome preemption would affect more than FIFRA. The Medical Device Amendments and several other federal statutes across a range of industries contain similar or identical labeling preemption provisions. See, *e. g.*, 21 U. S. C. §§ 678; 1052(b); 467e; 379s(a), 379r(a)(2); 343–1(a)(2)–(4). Those similar labeling preemption clauses reflect Congress's judgment that the ability to sell a product throughout the country with a single label can be important to maintaining an efficient nationwide market.

In short, under federal law, Monsanto was required (i) to obtain EPA's approval for its Roundup label at registration; and (ii) to use the EPA-approved Roundup label unless, in the future, EPA approved or required changes to the label. Those are the relevant federal labeling requirements "under" FIFRA. Durnell's failure-to-warn claim, meanwhile, would require Monsanto to place a cancer warning on Roundup's label. That state labeling requirement is "in addition to or different from" EPA's labeling determinations that do not

Page Proof Pending Publication

mandate a cancer warning. Durnell's failure-to-warn claim is expressly preempted.[7]

III

Durnell counters with four overlapping arguments, none of which is persuasive.

First, Durnell (echoed by the dissent) contends that a Missouri failure-to-warn claim, like FIFRA itself, simply requires manufacturers to include adequate warnings to protect human health, and not to include false or misleading statements. Compare *Moore* v. *Ford Motor Co.*, 332 S. W. 3d 749, 756 (Mo. 2011), with 7 U. S. C. §§ 136(q)(1)(A), (G), 136j(a)(1)(E). But that argument operates at far too high a level of generality and disregards the central and comprehensive role that EPA performs in making labeling determinations under FIFRA's registration provisions. Looking at only FIFRA's general standard for misbranding rather than the specific requirements imposed under federal law would nullify FIFRA's preemption clause and the uniformity that Congress sought for safety warnings on pesticide labels.

Page Proof Pending Publication

Durnell's argument implausibly maintains that EPA's registration and labeling determinations do not have preemptive force. But by its text, FIFRA affords preemptive force to federal requirements imposed "under" FIFRA, not merely those imposed "by" the actual statute itself. § 136v(b). And FIFRA authorizes EPA to "prescribe regulations to carry out the provisions of [FIFRA]," and requires EPA to make registration and labeling determinations. §§ 136w(a)(1), 136a(c)(5)(B). EPA's regulations require manufacturers to use the label approved by EPA, or face potential civil or criminal penalties. See 40 CFR §§ 152.44(a), 156.70(c) (2025); 7 U. S. C. §§ 136j(a)(1)(E), 136*l*. So EPA's registration determinations as to the appropriate level of

[7] Because we conclude that Durnell's failure-to-warn claim is expressly preempted, we need not consider Monsanto's implied preemption argument.

warning on a pesticide's label impose "requirements" "under" FIFRA.

Durnell's argument also contravenes *Riegel* v. *Medtronic, Inc.*, 552 U. S. 312 (2008). There, as explained above, the Court held that FDA's determinations in the premarket approval process imposed federal " 'requirements' " "under" the Medical Device Amendments and thereby displaced additional or different state-law requirements imposed through state tort suits. *Id.*, at 322–323. There is no good argument for treating FDA's premarket approval as "requirements" "under" the Medical Device Amendments, but not treating EPA's regulations and registration determinations as requirements under FIFRA's materially identical preemption clause.

Second, Durnell claims that EPA's regulations—and its procedures for registering pesticides and approving pesticide labels—exceed or contravene EPA's statutory authority under FIFRA. See Brief for Respondent 21–25, 39–40 (citing *Loper Bright Enterprises* v. *Raimondo*, 603 U. S. 369 (2024)).

Page Proof Pending Publication

Durnell is incorrect. Again, FIFRA empowers EPA to "prescribe regulations to carry out the provisions of [FIFRA]." 7 U. S. C. §136w(a)(1). And FIFRA expressly directs EPA to register pesticides and "determin[e]" that the pesticide's "labeling" complies with FIFRA's many specific requirements. §136a(c)(5)(B). During that extensive registration process, EPA critically evaluates the pesticide's label to ensure that the label contains all warnings necessary to protect human health. After EPA makes a determination about the appropriate warnings for a pesticide's label, a manufacturer is legally required to use that label unless and until EPA subsequently approves or requires a new label. See 40 CFR §§152.44(a), 156.70(c). Under FIFRA's preemption provision, those federal labeling requirements displace any additional or different state-law requirements.

Third, Durnell (also echoed by the dissent) seizes on one of FIFRA's self-described "[m]iscellaneous" provisions, 7

U. S. C. § 136a(f)(2), which provides that "[i]n no event shall registration . . . be construed as a defense for the commission of any offense under this subchapter," but that registration is "prima facie" evidence of compliance with the registration provisions. Durnell argues that the fact of "registration" of a pesticide like Roundup could not serve as a defense to an EPA enforcement action for misbranding and therefore cannot serve as a defense in a state tort suit that parallels a federal misbranding action.

That argument would effectively erase FIFRA's express preemption clause. And the argument fails for multiple independent reasons.

To begin, § 136a(f)(2), by its text, does not apply to state tort suits. That provision simply clarifies that registration does not bar EPA enforcement actions against manufacturers for violating FIFRA.

Moreover, the premise of Durnell's § 136a(f)(2) argument is flawed. It is highly doubtful that EPA would bring an enforcement action for misbranding against a manufacturer for using the EPA-approved and EPA-required label. Rather, a manufacturer's label might constitute a misbranding violation if the label (i) included information that was not on the EPA-approved label, or (ii) omitted information that was on the EPA-approved label. Under those circumstances, the mere fact of registration obviously may not serve as a complete defense to an EPA enforcement action, as § 136a(f)(2) indicates. In that context, § 136a(f)(2) makes complete sense.

Page Proof Pending Publication

But Durnell's failure-to-warn claim does not fault Monsanto for *using* a label different from the EPA-approved labeling. Durnell instead faults Monsanto for *not using* a label different from the EPA-approved label. But FIFRA's preemption clause expressly preempts any state tort claim that would require a pesticide manufacturer to use a label "in addition to" or "different from" federal requirements im-

posed under FIFRA, which, as explained above, include the EPA-approved label.

And even more problematic for Durnell, EPA regulations promulgated under FIFRA *require* a manufacturer to use the EPA-approved label and prohibit the manufacturer from unilaterally changing the label without EPA's approval. See 40 CFR §§ 152.44(a), 156.70(c). Indeed, if the manufacturer unilaterally changed the label, as Durnell says Monsanto should have done, the manufacturer would be flouting EPA's regulations and exposing itself to potentially severe federal penalties. See 7 U. S. C. §§ 136j(a)(1)(E), 136*l*. So Durnell's argument also triggers potential retroactivity and estoppel questions. The law is not ordinarily read to retroactively penalize persons for doing what the Government had required them to do. Cf. *Landgraf* v. *USI Film Products*, 511 U. S. 244 (1994).

Not surprisingly, therefore, the United States explicitly represented at oral argument that EPA does not bring a misbranding action when the manufacturer was using an EPA-approved label. See Tr. of Oral Arg. 44 ("EPA doesn't go after people for . . . not changing your label even though EPA doesn't let you . . . . We don't bring that kind of enforcement action"). Instead, as described at length above, if new safety information comes to light, EPA may gather more information from the manufacturer; ask the manufacturer to change its label; pursue registration cancellation, suspension, or modification proceedings; or seek civil or criminal penalties if a manufacturer failed to inform EPA of important new safety-related information. See 7 U. S. C. §§ 136a(d), 136d, 136*l*; 40 CFR § 152.170(e)(1); Tr. of Oral Arg. 51–52 (United States: "if EPA also thought that there was some sort of misbranding risk," "as a practical matter, what happens is EPA gets information and might ask the manufacturer . . . can you please try to amend your registration and change it?").

Page Proofs Pending Publication

But suppose (contrary to the United States' express representation to this Court) that EPA someday did charge a manufacturer with misbranding for using the EPA-approved and EPA-required label. Even in that unlikely scenario, Durnell's § 136a(f)(2) argument would falter in light of the statutory text and context. To reiterate, § 136a(f)(2)'s proviso that registration is not a defense is limited to EPA enforcement actions for "any offense under this subchapter." And it would be rather bizarre to read a provision entitled "[m]iscellaneous" and dealing only with a defense to an EPA enforcement action to upend FIFRA's carefully calibrated and EPA-centric regulatory scheme. Make no mistake: Durnell's § 136a(f)(2) argument would negate FIFRA's express preemption clause, expose manufacturers to potentially massive tort liability for doing what EPA required them to do, and eviscerate the "uniformity" of EPA's labeling determinations. See §§ 136a(f)(2), 136v(b).[8]

Page Proof Pending Publication

In addition, Durnell's § 136a(f)(2) argument does not work for yet another reason. Monsanto is not invoking the mere fact of "registration" as a complete defense to state tort suits. Rather, Monsanto is relying on EPA's specific determination that cancer warnings are not required for glyphosate-based pesticide labels. So even by its own terms, § 136a(f)(2) would not apply here.

Last, Durnell's § 136a(f)(2) argument contravenes this Court's decision in *Riegel*. In that case, FDA was statutorily authorized to withdraw premarket approval for a medical device based on "newly reported data or existing infor-

[8] Durnell's § 136a(f)(2) argument also runs up against the Act's history. Under the initial 1947 Act, manufacturers would apply to register their pesticides with the Secretary of Agriculture, and the Secretary's decision to grant registration was essentially mandatory. See 61 Stat. 163, 168; *Bates* v. *Dow Agrosciences LLC*, 544 U. S. 431, 437, n. 8 (2005). At that time, registration did not indicate compliance with the Act. So § 136a(f)(2) is a vestige of that earlier regulatory approach, which is another contextual reason not to interpret it so broadly as to erase FIFRA's later-added preemption clause.

mation." 552 U. S., at 319. And FDA was obligated to withdraw approval if it "determine[d] that a device is unsafe or ineffective." *Id.*, at 319–320. But the possibility that FDA could withdraw its premarket approval based on new evidence or new analysis did not preclude this Court from concluding that FDA's premarket approval imposed "requirements" on manufacturers that preempted state tort suits under the Medical Device Amendments' materially identical preemption clause. *Id.*, at 322–323.[9]

So too here. The theoretical possibility that EPA could (despite its representation otherwise) try to bring a misbranding enforcement action against a pesticide manufacturer on the theory that the EPA-approved and EPA-required label had in essence become misbranded over time due to new evidence does not deprive EPA's registration decisions of their preemptive force.

Page Proof Pending Publication

[9] The dissent advances two further arguments for distinguishing *Riegel*. Neither works. First, the dissent contends that the Medical Device Amendments lack an equivalent to FIFRA's §136a(f)(2). See *post*, at 417. But as explained above, premarket approval of a medical device did not prevent the FDA from later withdrawing its approval, just as §136a(f)(2) and other statutory provisions indicate that the mere fact of registration does not foreclose EPA from later changing its labeling requirements.

Second, the dissent points out that *Riegel* did not consider state-law claims that were parallel to "an applicable federal requirement, apart from the FDA's premarket approval process." *Post*, at 417. From that, the dissent concludes that *Riegel* does not control this case, which involves state-law claims that are allegedly parallel to an applicable federal requirement—FIFRA's misbranding prohibition. See *post*, at 417–418. But that conclusion does not follow. It is true that *Riegel* did not assess whether the state-law claims at issue were "different from, or in addition to" the relevant federal-law requirements. 552 U. S., at 330 (quotation marks omitted). But *Riegel* indisputably did resolve the question of whether premarket approval constituted a "requirement" for preemption purposes. See *id.*, at 322–323. That is the portion of *Riegel* that controls here: It establishes that EPA's analogous registration and label approval determinations are "requirements" under FIFRA.

Fourth, and relatedly, Durnell raises concerns about the scenario in which new safety information arises after EPA's initial registration determination and labeling approval.

As described at length above, however, Durnell's policy concern about regulatory lag is amply addressed by the extensive processes that FIFRA and EPA's implementing regulations have established to respond to new or evolving safety information. For example, manufacturers must apprise EPA of new information "regarding unreasonable adverse effects" of their pesticides. § 136d(a)(2). That obligation is backed by civil and criminal penalties. § 136*l*.

EPA, meanwhile, also has many ways of ensuring a pesticide's continued compliance with FIFRA. EPA does not sit in an information-free silo. It keeps abreast of new safety developments. EPA may request additional information from manufacturers whenever the Agency "determines that additional data are required to maintain" a pesticide's registration. § 136a(c)(2)(B)(i). And EPA possesses ample resources to evaluate that information. EPA may solicit "comments, evaluations, and recommendations" to "improve the effectiveness and quality" of EPA's "scientific analyses" from scientific advisory panels. § 136w(d)(1).

Page Proof Pending Publication

For example, in the aftermath of the International Agency for Research on Cancer's classification of glyphosate as probably carcinogenic, EPA commissioned multiple reports about glyphosate's potential carcinogenicity from its Cancer Assessment Review Committee and Office of Pesticide Programs. See EPA, Office of Chemical Safety and Pollution Prevention, Glyphosate: Report of the Cancer Assessment Review Committee 7–8 (Oct. 1, 2015); EPA, Office of Pesticide Programs, Revised Glyphosate Issue Paper: Evaluation of Carcinogenic Potential 13 (Dec. 12, 2017).

Moreover, if third parties (like Durnell) want to bring new information to EPA's attention or if they believe that EPA has failed to consider relevant information, those third parties are free to petition EPA to modify, suspend, or cancel a

pesticide's registration. See 40 CFR §154.10. And EPA's decision in response to such a petition is subject to judicial review. See 7 U. S. C. §§136n(a), 136d(h).[10]

As demonstrated by that comprehensive regulatory regime, EPA possesses a variety of tools to learn of and address new safety information. And as a matter of law, state tort law may not impose labeling requirements "in addition to" or "different from" federal requirements imposed under FIFRA.

* * *

With respect to pesticide labels, FIFRA demands "[u]niformity" and expressly preempts state labeling requirements that are "in addition to" or "different from" federal labeling requirements. §136v(b). Durnell's state-law failure-to-warn claim would require a cancer warning on Roundup's label—a requirement "in addition to" and "different from" the label required by EPA under FIFRA. FIFRA therefore expressly preempts Durnell's claim. We reverse the judgment of the Missouri Court of Appeals and remand the case for further proceedings not inconsistent with this opinion.

It is so ordered.

Page Proof Pending Publication

JUSTICE THOMAS, concurring.

I agree with the Court's interpretation of the Federal Insecticide, Fungicide, and Rodenticide Act and its application of our preemption precedents. I therefore join its opinion in full. I write separately to call attention to some of the underlying constitutional infirmities in the Act.

---

[10] If a citizen becomes aware of new safety concerns that arise after registration, the citizen is free to bring the information to EPA's attention and ask EPA to cancel or suspend the pesticide's registration, or require a labeling change. But that is quite different from seeking to *retroactively* penalize a manufacturer for doing what it was legally required to do at the time.